IN THE UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF NEW MEXICO

IN THE MATTER OF:
LOCAL RULES OF CRIMINAL PROCEDURE 25-MC-00004-35

ADMINISTRATIVE ORDER

With the concurrence of the active Article III judges in the District, this Administrative Order is entered for the Court.

Under the authority of 28 U.S.C. § 2071, Rule 83 of the Federal Rules of Civil Procedure, and Rule 57 of the Federal Rules of Criminal Procedure,

IT IS ORDERED that amendments to D.N.M.LR-CR. 32 of the Local Rules of Criminal Procedure governing practice in the United States District Court for the District of New Mexico are hereby adopted, and will become effective upon filing.

DONE this 14th day of November, 2025.

FOR THE COURT:[1]

/s/
KENNETH J. GONZALES[2]
CHIEF UNITED STATES DISTRICT JUDGE

1 For the court, pursuant to Administrative Order Misc. No. 83-252.
2 Please note that this document has been electronically filed. To verify its authenticity, please refer to the Digital File Stamp on the NEF (Notice of Electronic Filing) accompanying this document. Electronically filed documents can be found on the court's PACER public access system.

UNITED STATES DISTRICT COURT
DISTRICT OF NEW MEXICO

Local Rules of Criminal Procedure

EFFECTIVE DECEMBER 1, 2009
Amended Effective October 1, 2012
Amended Effective November 1, 2016
Amended Effective April 1, 2018
Amended Effective November 12, 2021
Amended Effective February 8, 2023
Amended Effective October 19, 2023
Amended Effective November 14, 2025

LOCAL RULES OF CRIMINAL PROCEDURE
OF THE
UNITED STATES DISTRICT COURT
FOR THE
DISTRICT OF NEW MEXICO

PART I SCOPE OF RULES

PART II INITIAL APPEARANCE AND PRELIMINARY HEARING

PART III PREPARATION FOR TRIAL

PART IV POST-CONVICTION PROCEEDINGS

PART V GENERAL PROVISIONS

Effective December 1, 2009
Amended Effective November 14, 2025

THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW MEXICO

CHIEF DISTRICT JUDGE
Kenneth J. Gonzales
Santiago E. Campos U.S. Courthouse
106 South Federal Place, 2nd Floor
Santa Fe, NM 87501

DISTRICT JUDGE
James O. Browning
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 660
Albuquerque, NM 87102

DISTRICT JUDGE
Kea W. Riggs
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 740
Albuquerque, NM 87102

DISTRICT JUDGE
Margaret I. Strickland
U.S. Courthouse
100 North Church Street, Suite 590
Las Cruces, NM 88001

DISTRICT JUDGE
David Herrera Urias
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 780
Albuquerque, NM 87102

DISTRICT JUDGE
Matthew L. Garcia
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 640
Albuquerque, NM 87102

DISTRICT JUDGE
Sarah M. Davenport
U.S. Courthouse
100 North Church Street, Suite 560
Las Cruces, NM 88001

SENIOR DISTRICT JUDGE
Robert C. Brack
U.S. Courthouse
100 North Church Street, Suite 580
Las Cruces, NM 88001

SENIOR DISTRICT JUDGE
Judith C. Herrera
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 710
Albuquerque, NM 87102

SENIOR DISTRICT JUDGE
Martha Vázquez
Santiago E. Campos U.S. Courthouse
106 South Federal Place, 2nd Floor
Santa Fe, NM 87501

SENIOR DISTRICT JUDGE
William P. Johnson
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 720
Albuquerque, NM 87102

CHIEF MAGISTRATE JUDGE
Gregory B. Wormuth
U.S. Courthouse
100 North Church Street, Suite 540
Las Cruces, NM 88001

MAGISTRATE JUDGE
Steven C. Yarbrough
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 670
Albuquerque, NM 87102

MAGISTRATE JUDGE
Kirtan Khalsa
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 630
Albuquerque, NM 87102

MAGISTRATE JUDGE
Laura N. Fashing
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 680
Albuquerque, NM 87102

MAGISTRATE JUDGE
Gregory Fouratt
U.S. Courthouse
100 North Church Street, Suite 550
Las Cruces, NM 88001

MAGISTRATE JUDGE
Kevin R. Sweazea
U.S. Courthouse
100 North Church Street, Suite 510
Las Cruces, NM 88001

MAGISTRATE JUDGE
Jerry H. Ritter
U.S. Courthouse
100 North Church Street, Suite 530
Las Cruces, NM 88001

MAGISTRATE JUDGE
John F. Robbenhaar
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 730
Albuquerque, NM 87102

MAGISTRATE JUDGE
Jennifer M. Rozzoni
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 620
Albuquerque, NM 87102

MAGISTRATE JUDGE
Damian L. Martinez
U.S. Courthouse
100 North Church Street, Suite 520
Las Cruces, NM 88001

PART-TIME MAGISTRATE JUDGE
Barbara Smith Evans
U.S. Courthouse
500 North Richardson
Roswell, NM 88201

****

CLERK
Mitchell R. Elfers
Pete V. Domenici U.S. Courthouse
333 Lomas Blvd. NW, Suite 270
Albuquerque, NM 87102

LAS CRUCES CLERK'S OFFICE
U.S. Courthouse
100 North Church Street
Las Cruces, NM 88001

SANTA FE CLERK'S OFFICE
Santiago E. Campos U.S. Courthouse
106 South Federal Place
P. O. Box 2384
Santa Fe, NM 87504

Please see http://www.nmd.uscourts.gov/ for the most current telephone contact information.

COMMITTEE OF THE COURT
Local Criminal Rules Committee

Honorable Laura N. Fashing, Chair

Hon. Kenneth J. Gonzales, District Judge, *ex officio*
Hon. Gregory B. Wormuth, U.S. Magistrate Judge
Mr. Ronald Travers, Chief of Probation and Pretrial Services
Ms. Margaret Katz, Federal Public Defender
Mr. Ryan Ellison, U.S. Attorney
Mr. Ryan J. Villa, Attorney Member
Ms. Joni Stahl, Attorney Member
Ms. Heather Small, Chief Deputy, Non-Voting

Table of Contents

I. SCOPE OF RULES 1

RULE 1. Scope; Application. 1
1.1 Title and Citation 1
1.2 Effective Date. 1
1.3 Application of Rules 1
1.4 Electronic filing. 1
1.5 Charging Documents 1

II. INITIAL APPEARANCE AND PRELIMINARY HEARING 1

RULE 5. Initial Appearance Before Magistrate Judge. 1
5.A Initial Interview of Defendants by Pretrial Services Officers 1
5.B Handling and Dispositions of Undocumented Alien Material Witnesses. 2
5.C Initial Appearances before Part-Time United States Magistrate Judges. 2

RULE 5.1 Preliminary Hearing 2
5.1 Locations Where Preliminary Hearings may be Held 2

III. PREPARATION FOR TRIAL 2

RULE 11 Plea Agreements. 2
11.1 Advising Court of a Plea Agreement 2
11.2 Deferring Acceptance or Rejection of Plea Agreements 3

RULE 16 Discoveries and Evidence 3
16.1 Disclosure of Evidence 3
16.2 Complex or Capital Punishment Cases 3

IV. POST-CONVICTION PROCEEDINGS 3

RULE 32 Sentencing and Judgment 3
32.A Notice and Opportunity for Defendant's Attorney to Attend Presentence Interview. 3
32.B Confidential Nature of Report *[Effective 11/14/2025]* 3
32.C Sentencing Pleadings *[Effective 11/14/2025]* 3
32.D Disclosure of Recommendation *[Effective 11/14/2025]* .....
32.E Requesting Presentence Reports before Guilty Pleas *[Effective 11/14/2025]* 4

V. GENERAL PROVISIONS 4

RULE 44 Right to and Appointment of Counsel. 4
44.1 Entry of Appearance *[Effective October 19, 2023]*..... 4
44.2 Self-Representation *[Effective November 12, 2021]*..... 5

RULE 46 Release from Custody. 5
46.1 Hearings for Release from Custody. 5
46.2 Approval of Bonds by the Clerk of the District Court of New Mexico 5

RULE 47 Motions 5
47.1 Opposed Motions 5
47.2 Unopposed Motions. 5
47.3 Motions Regarding Release or Detention 5
47.4 Motions Regarding the Transport of a Defendant 5
47.5 Motions and Proposed Orders to Continue Trial. 6
47.6 Joinder of Co-Defendant's Motion. 6
47.7 Citation of Authority 6
47.8 Timing and Restrictions on Responses and Replies. 6
47.9 Length of Motion and Brief. 6
47.10 Evidentiary Hearings 6

RULE 49 Service and Filing Papers. 6
49.1 Electronic Filing and Official Record. 6
49.2 Court Orders 7
49.3 Service 7
49.4 Sealed Documents 7
49.5 Signatures 8
49.6 Retention of Documents Requiring Original Signatures. 8

RULE 53 Courtroom Photographing and Broadcasting Prohibited. 8
53.1 Courtroom and Courthouse Decorum. 8

RULE 55 Records..... 9
55.1 Return of Exhibits in Criminal Cases 9

RULE 57 Miscellaneous Rules. 9
57.1 Waiver of Rules 9
57.2 Compliance with the Rules of Professional Conduct and A Creed of Professionalism of the New Mexico Bench and Bar 9
57.3 Release of Information by Courthouse Personnel in Criminal Cases 9
57.4 Clinical Law Student Practice *[Effective February 8, 2023]* 9
57.5 Redaction of Personal Identifiers for Certain Persons 10
57.6 Filing Documents Containing Personal Identifiers 10
57.7 Counsel and Parties Responsible for Redactions 11

RULE 58 Petty Offenses and Other Misdemeanors. 11

58.1 Petty Offense or Misdemeanor Citations.*[Effective October 1, 2012]*.....11
58.2 Appeal Procedures for Decisions of the Magistrate Judge on Misdemeanors and Petty Offenses. 12

LOCAL CRIMINAL RULES OF THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF NEW MEXICO

I. SCOPE OF RULES

RULE 1. Scope; Application.

1.1 Title and Citation These are the Local Rules for criminal proceedings in the United States District Court for the District of New Mexico. They are cited as "D.N.M.LR-Cr. _____."

1.2 Effective Date. These Rules take effect on December 1, 2009.
[Amended Effective November 14, 2025]

1.3 Application of Rules. These Rules apply in all criminal proceedings in the District of New Mexico.

1.4 Electronic filing. All petitions, motions and other pleadings or documents required to be filed with the Court must be electronically filed unless excepted as defined in the CM/ECF Administrative Procedures Manual.

1.5 Charging Documents. The electronically filed or electronically submitted charging documents, including the complaint, information, indictment and superseding information or indictment, must include the image of any legally required signature.

II. INITIAL APPEARANCE AND PRELIMINARY HEARING

RULE 5. Initial Appearance Before Magistrate Judge

5.A Initial Interview of Defendants by Pretrial Services Officers.

a. Opportunity to Consult with Counsel. A defendant will be given an opportunity to consult with counsel before his or her initial interview with the Pretrial Services Officers. The Federal Public Defender, as directed by the Court, will provide advice of rights to defendants before their interview by Pretrial Services.

b. Notification of Counsel. It is the responsibility of Pretrial Services to notify the defendant's retained counsel or the Federal Public Defender before the initial interview.

c. Determination of Eligibility. If the Court determines the defendant is eligible for appointed counsel, the Court will appoint counsel under the Criminal Justice Act. The Clerk will notify defendant's counsel of the custodial status of the defendant and the time of the Initial Appearance or the next scheduled hearing.

d. Summons Cases. If a summons is issued to a defendant, the Clerk will attach a notice to the summons advising the defendant to contact Pretrial Services. Pretrial Services will:

- advise the defendant of his or her rights;
- advise the defendant to consult with counsel before the initial interview with the Pretrial Services Officers; and
- advise the defendant that his or her counsel may be present during the initial interview.

5.B Handling and Dispositions of Undocumented Alien Material Witnesses.

a. Affidavit. If an undocumented alien is to be a material witness in a criminal case, the United States Attorney will immediately file an affidavit stating reasonable grounds to secure the presence of the undocumented alien under 18 U.S.C. §3144.

b. Eligible for Appointed Counsel. If the Court determines the detained material witness is eligible for appointed counsel, the Court will appoint counsel under the Criminal Justice Act, 18 U.S.C. §3006A(a)(1)(G).

c. Release of Material Witness. If the Court determines release to be appropriate, the material witness may be released to the supervision of Pretrial Services under 18 U.S.C. §3142.

d. Return to Custody of the Bureau of Citizenship and Immigration. When a material witness is no longer needed for a criminal proceeding, the United States Attorney will file a motion and submit a proposed order to the Court so a material witness may be returned to the custody of the Bureau of Citizenship and Immigration Services for further processing. The proposed order must be submitted as explained in the CM/ECF Administrative Procedures Manual.

5.C Initial Appearances before Part-Time United States Magistrate Judges. A part-time Magistrate Judge may conduct the Initial Appearance.

RULE 5.1 Preliminary Hearing.

5.1 Locations Where Preliminary Hearings may be Held. The preliminary hearing required under Rule 5.1 of the Federal Rules of Criminal Procedure will be held in a location where a District Judge or a full-time Magistrate Judge normally presides.

III. PREPARATION FOR TRIAL

RULE 11 Plea Agreements.

11.1 Advising Court of a Plea Agreement. The Court must be advised of a plea agreement sufficiently in advance of trial to avoid assembling a jury panel unnecessarily.

11.2 Deferring Acceptance or Rejection of Plea Agreements. The Court will defer a decision on the acceptance or rejection of the plea agreement until the Court has reviewed the presentence report, even in instances where the Court has accepted the guilty plea.

RULE 16 Discovery and Evidence.

16.1 Disclosure of Evidence. The Parties will comply with the Standard Discovery Order. A copy of the Order is attached to these Rules.

16.2 Complex or Capital Punishment Cases. If a case is complex or is a capital punishment case, the Court will enter a Scheduling Order after meeting with counsel.

IV. POST-CONVICTION PROCEEDINGS

RULE 32 Sentencing and Judgment.

32.A Notice and Opportunity for Defendant's Attorney to Attend Presentence Interview. Defendant's attorney is deemed to have requested notice and a reasonable opportunity to attend the presentence report interview. If a defendant's attorney receives a request to schedule a presentence report interview, the attorney must respond within seven (7) days. If the attorney does not respond, the presentence report disclosure time limits of Rule 32(e)(2) of the Federal Rules of Criminal Procedure are waived.

32.B Confidential Nature of Report. The presentence report is a confidential record of the United States District Court and must be filed as a restricted document, that is, access to the document is restricted to counsel for the United States, counsel for the defendant, the United States Probation Office, and Court staff. It must not be disclosed to anyone other than the Court, the defendant, the defendant's attorney, and the attorney for the government unless required by law or ordered by the Court. Copies of the report must not be made except when necessary to carry out this rule.

32.C Sentencing Pleadings.

(1) The probation officer will file the initial presentence report on the court docket at least 35 days prior to the sentencing hearing. Prior to filing formal objection(s) to the presentence report, the parties must confer with each other and the probation officer regarding the objection(s) within fourteen (14) days after the filing of the presentence report.

(2) Any unresolved objection(s) to the presentence report and/or a motion for departure must be filed at least fourteen (14) days prior to the sentencing hearing. Any response must be filed seven (7) days after the filing of the unresolved objection or motion for departure. Any reply must be filed three (3) days after the filing of any response.

(3) If the parties have no objections or motions for departures, they may still file a sentencing memorandum addressing additional factors for the Court to consider at

the sentencing hearing at least 14 days prior to the sentencing hearing.

(4) The probation officer will file the final presentence report on the court docket at least seven (7) days before the sentencing hearing.

(5) The Court may alter these time limits *sua sponte* or for good cause shown.

(6) All sentencing pleadings must be served on opposing counsel and the Probation Office.

32.D Disclosure of Recommendation. Except as ordered by the Court, the Probation Office must not disclose a final recommendation concerning sentencing.

32.E Requesting Presentence Reports before Guilty Pleas. A motion for a Presentence Report before a plea agreement has been entered will be granted only for exceptional circumstances.

a. Form of Motion. If a presentence report is requested before a plea agreement has been entered, the motion must state the position of the government and must contain the following:

(1) a waiver of the defendant's right to a speedy trial;

(2) an explanation of the issues that would justify the preparation of a pre-plea presentence report; and

(3) a copy of the proposed plea agreement, if any.

b. Review by the Probation Office. The Court may ask the Probation Office to review the request and make recommendations to the Court regarding the merits of a pre-plea presentence report.

V. GENERAL PROVISIONS

RULE 44 Right to and Appointment of Counsel.

44.1 Entry of Appearance.

a. Written Entry of Appearance. An attorney who is not appointed by the Court must file an entry of appearance which includes the attorney's name, firm name, address, telephone number, facsimile number, and e-mail address.

b. Appointed Counsel. Counsel appointed by the Court need not file an entry of appearance.

c. Eligibility of Counsel. To be eligible to appear in criminal actions, the attorney must be a member in good standing of the Federal Bar of the District of New Mexico.

d. Counsel Must be Registered Participants. All attorneys appearing in the District of New Mexico must be Registered Participants in the CM/ECF system.

e. Out of State Counsel. Out of state counsel must associate with eligible counsel of the Federal Bar of the District of New Mexico. Local counsel need not appear at court hearings with associated out of state counsel unless directed by the Court. Out of state counsel must become Registered Participants in the District's CM/ECF system before entering their appearance.

f. Withdrawal or Substitution of Counsel. Withdrawal or substitution of counsel must be by motion and order.

g. Representation of Corporation, Partnership or Artificial Entity Other Than a

Natural Person. A corporation, partnership or artificial entity other than a natural person must be represented by an attorney authorized to practice before this Court.

h. Limited Entry of Appearance. An attorney may not appear in a limited manner except by Court order.

i. Change of Address. All attorneys of record and defendants appearing *pro se* have a continuing duty to file a Notice of Change of Address in each case of any change in their mailing addresses, telephone numbers or e-mail addresses.

j. Entry of Appearance Must be Filed Before Filing Pleadings. When filing pleadings, the attorney must first file an entry of appearance or have been appointed by the Court. If documents are filed in error or prior to an attorney's appointment or the filing of an entry of appearance, the attorney will notify the Clerk who will enter a notice of correction.

44.2 Self-Representation. Unless permitted by the Court, a defendant who is represented by an attorney may not represent him or herself in any way, including filing any document other than a motion for new counsel, a motion seeking to represent him or herself, or a notice of appeal.

RULE 46 Release from Custody.

46.1 Hearings for Release from Custody. Any hearing held under the Bail Reform Act, 18 U.S.C. §3141, et seq., will be held in a location where a District Judge or a full-time Magistrate Judge normally presides.

46.2 Approval of Bonds by the Clerk of the District Court of New Mexico. Unless the statute requires or the Court has issued an order requiring prior Court approval, the Clerk may approve bonds when:

- the Court has fixed the amount of bail; and
- the bond is secured by the deposit of cash or obligations of the United States or is an approved corporate surety bond.

RULE 47 Motions.

47.1 Opposed Motions. Movant must determine whether a motion is opposed. Movant must recite in the motion whether concurrence was refused or explain why concurrence could not be obtained.

47.2 Unopposed Motions. An unopposed motion must state that it is unopposed and be filed like any other motion. A motion that fails to recite concurrence of each party may be summarily denied. A proposed order must accompany the motion as explained in the CM/ECF Administrative Procedures Manual.

47.3 Motions Regarding Release or Detention. A motion regarding the conditions of release or detention must state the position of Pretrial Services. Service by FAX or email must also be made on the U.S. Probation and Pretrial Services.

47.4 Motions Regarding the Transport of a Defendant. A motion regarding the transport of a defendant in the custody of the United States Marshals Service must state the position

of the United States Marshals Service. Service must also be made on the United States Marshals Service. All transport orders will be sealed.

47.5 Motions and Proposed Orders to Continue Trial. Motions and proposed Orders for a continuance of trial must address with particularity 18 U.S.C. §3161(h).

47.6 Joinder of Co-Defendant's Motion. A co-defendant who seeks to join a specific motion previously filed by a co-defendant must file a motion.

47.7 Citation of Authority. A motion, response or reply must cite authority in support of legal positions advanced.

47.8 Timing and Restrictions on Responses and Replies.

a. Timing. A response must be served within fourteen (14) days after service of the motion. A reply must be served within fourteen (14) days after service of the response. These time periods are computed in accordance with Rule 45(a) thru (c) of the Federal Rules of Criminal Procedure and may be extended by the Court.

b. Surreply. The filing of a surreply requires leave of the Court.

c. Expedited Briefing. When the Court orders an expedited briefing schedule, briefs and any supporting papers must be served on each party by the most expeditious reasonable method of service.

47.9 Length of Motion and Brief.

- The length of a motion, or if a separate brief is filed in support of a motion, the combined length of a motion and supporting brief, must not exceed twenty-seven (27) double-spaced pages.
- A response brief must not exceed twenty-four (24) double-spaced pages.
- A reply brief must not exceed twelve (12) double-spaced pages.

47.10 Evidentiary Hearings. Parties will state in their pleadings whether and why an evidentiary hearing is needed.

RULE 49 Service and Filing Papers.

49.1 Electronic Filing and Official Record.

a. Filing of document. Electronic transmission of a document to the Court's CM/ECF system constitutes filing of the document under the Federal Rules of Criminal Procedure and entry of the document on the docket kept by the Clerk of the Court.

b. Official Record. When a document is electronically submitted or filed, the official record is the electronic recording of the document as stored by the Court.

c. Time of Filing.

1. **Filed Electronically.** The official date and time of filing is indicated on the Notice of Electronic Filing (NEF).

2. **Filed in Paper Form.** If a document is filed in paper form and subsequently converted to an electronic document, the time of filing is the date and time of the original filing.
3. **Deadlines for Filing.** Electronic filing must be completed before midnight local time where the Court is located in order to be considered timely filed that day.

d. Technical Failure. A Registered Participant whose filing is made untimely as a result of a technical failure may seek appropriate relief from the Court.

49.2 Court Orders.

a. Entry on the Docket. All orders, decrees, judgments, notices and proceedings of the Court will be filed electronically, which will constitute entry on the docket kept by the Clerk of the Court under Federal Rules of Criminal Procedure 49 and 55.

b. Notice of a Court Order. Immediately upon entry of an order or judgment, the Clerk of the Court will transmit a Notice of Electronic Filing (NEF) to the Registered Participants. The electronic transmission of the Notice constitutes Notice of a Court Order. The Clerk of the Court will issue notice in paper form to those parties or persons entitled to notice who are not Registered Participants.

c. Orders do not Require Original Signatures. Any order electronically filed by the Court without the original signature of a judge or clerk has the same force and effect as if the judge or clerk had signed a paper copy of the order and it had been entered on the docket in the conventional manner.

d. Text Only Orders. Orders may also be issued as Text Only Entries on the docket.

e. Warrant or Summons. The Court may issue a warrant or summons electronically. They must be executed or served in accordance with Federal Rule of Criminal Procedure 4(c).

49.3 Service.

a. Registered Participants Consent to Electronic Service. Registration as a Registered Participant constitutes consent to electronic service of all documents under the Federal Rules of Criminal Procedure.

b. Notice of Electronic Filing (NEF) Sent by CM/ECF is Service. When a pleading is electronically filed**,** a Notice of Electronic Filing (NEF) is sent by the CM/ECF system to all Registered Participants. The NEF sent by the CM/ECF system is valid service to Registered Participants. It is the filer's responsibility to determine if all parties entitled to service are Registered Participants.

c. Party not a Registered Participant. If a party entitled to service is not a Registered Participant, the filer must serve the pleading in accordance with Federal Rule of Criminal Procedure 49.

d. Certificate of Service. Every pleading must have a certificate of service stating how the party was served. Certificates of service and the Notices of Electronic Filing (NEF) are explained in the CM/ECF Administrative Procedures Manual.

49.4 Sealed Documents.

a. Sealed Documents to be Filed Electronically. A motion to file documents under seal is filed electronically, unless prohibited by law. If the motion is granted, the

sealed documents are also filed electronically. Sealed filings are explained in the CM/ECF Administrative Procedures Manual.

b. Sealed filings do not Produce Notice of Electronic Filing (NEF). When a pleading is electronically filed under seal, the CM/ECF system does not produce a Notice of Electronic Filing (NEF). The filer must serve the pleading by an alternate method.

49.5 Signatures.

a. Registered Participant Signature. The user log-in and password required to submit documents to the CM/ECF system serve as the Registered Participant's signature on all electronic documents filed with the Court.

b. Signature of a Criminal Defendant. A document containing the signature of a criminal defendant must be scanned in a format that contains an image of the signature.

c. Signatures of Non-Registered Participants. A document containing the signature of a Non-Registered Participant is filed electronically. The signature is represented by a "s/" and the name typed in the space where a signature would otherwise appear or as a scanned image.

d. Documents Requiring Multiple Signatures. Documents requiring signatures of more than one party are electronically filed by either:

1. Submitting a scanned document containing all the necessary signatures; or
2. Representing the consent of the other parties on the document.

49.6 Retention of Documents Requiring Original Signatures.

Documents that are electronically filed and require original signatures other than that of the Registered Participant must be maintained in paper form by the Registered Participant until one (1) year after all time periods for appeals and post conviction relief expire. On request of the Court, the Registered Participant must produce the original documents for review.

RULE 53 Courtroom Photographing and Broadcasting Prohibited.

53.1 Courtroom and Courthouse Decorum.

a. Prohibition Against Cameras, Cellular Telephones with Cameras, Transmitters, Receivers, and Recording Equipment. No cameras, cellular telephones with cameras, transmitters, receivers or recording equipment may be brought into or used in any courtroom or court environs. Environs include:

- the entire floor where a courtroom is located;
- the entire floor where the grand jury meets; and
- the entire floor where a chambers of any Magistrate Judge or District Judge is located.

b. Authority to Impound Equipment. The U. S. Marshals Service may impound the above-described equipment brought into the courtroom or its environs.

c. Exemptions from Prohibition. The prohibitions of this rule do not apply to:

1. a stenographic or recording device used by an official court reporter or other authorized court personnel;

2. equipment brought into court during investiture, ceremonial or naturalization proceedings;
3. a telephone or pager turned off while Court is in session;
4. a lap-top computer as long as it does not make noise or interfere with court proceedings and is not used to record or transmit court proceedings;
5. a note-taking or other device required because of a person's disability;
6. a device to be used solely for the presentation of evidence;
7. attorneys and jurors with cellular telephones with cameras, but the use of the camera or recording features is prohibited while in the courtroom or court environs; or
8. court orders authorizing the use of such equipment.

RULE 55 Records.

55.1 Return of Exhibits in Criminal Cases. Unless otherwise ordered by the Court, in criminal cases, the Clerk will return all exhibits in the custody of the Clerk to the party who introduced the exhibits in evidence to be retained until case disposition is final. The parties will be responsible for producing the exhibits if required for an appeal record.

RULE 57 Miscellaneous Rules.

57.1 Waiver of Rules. The Court may waive any of the Rules when necessary to meet unusual circumstances or to avoid injustice.

57.2 Compliance with the Rules of Professional Conduct and A Creed of Professionalism of the New Mexico Bench and Bar. In all criminal proceedings, attorneys will comply with the Rules of Professional Conduct adopted by the Supreme Court of the State of New Mexico, unless modified by local rule or Court order. Attorneys appearing in this District must comply with "A Creed of Professionalism of the New Mexico Bench and Bar."

57.3 Release of Information by Courthouse Personnel in Criminal Cases. All Court personnel, including employees or subcontractors retained by the Court appointed official reporters, must not release any information pertaining to a criminal case that is not part of the public records of the Court or divulge any information concerning proceedings held outside the presence of the public.

57.4 Law Student Practice. *[Effective February 8, 2023]* Any judge of this Court may permit a law student to appear before him or her if all of the following conditions are met:

(a) The Student:

(1) Is enrolled and is in good standing with an ABA accredited law school.

(2) Has completed a minimum of two full semesters of law school coursework.

(3) Has received the consent of the party on whose behalf he or she appears.

(4) Appears pursuant to an approved law school class or clinical program,

as defined by this rule, or with the Office of the Federal Public Defender, or with a federal government agency.

(5) Is under the direct supervision of a qualified attorney, as defined by this rule, who attests to the student's compliance with this rule on the record.

(b) An Approved Law School Class or Clinical Program:

(1) Is a law school class or clinical program which demonstrates an appropriate supervision structure,

(2) Is led by an attorney with expertise in the area of intended practice and local rules, and

(3) Having met this criteria, is approved by the Chief Judge.

(c) The Qualified Attorney:

(1) Is a member in good standing of the Bar of this Court,

(2) Retains ultimate responsibility for all case matters,

(3) Is present with the student and signs all pleadings alone or in conjunction with the supervised student, and

(4) Files all pleadings under his or her personal electronic filing account.

57.5 Redaction of Personal Identifiers for Certain Persons. In compliance with the policy of the Judicial Conference of the United States, and the E-Government Act of 2002, and in order to promote electronic access to case files while also protecting personal privacy and other legitimate interests, parties must refrain from including, or must partially redact where inclusion is necessary, the following personal data identifiers for juveniles and victims from all pleadings filed with the Court, including attached exhibits, whether filed electronically or in paper, unless otherwise ordered by the Court.

a. Social Security Numbers. If an individual's social security number must be included in a pleading, only the last four digits of that number should be used.

b. Names of Minor Children. If the involvement of a minor child must be mentioned and a pseudonym is not appropriate, only the initials of that child's name should be used.

c. Dates of Birth. If an individual's date of birth must be included in a pleading, only the year should be used, except in the case of juveniles.

d. Addresses. The home address of any victim or material witness will not be used.

e. Financial Account Numbers. If financial account numbers must be included, only the last four digits of these numbers should be used.

57.6 Filing Documents Containing Personal Identifiers. In compliance with the E-Government Act of 2002, a party wishing to file a document containing the personal data identifiers listed above and who believes that the personal data identifiers are necessary and relevant to the case may either:

- file an unredacted version of the document under seal, or
- file a reference list under seal. The reference list will contain the complete personal data identifier(s) and the redacted identifier(s) used in their place in the filing.

The unredacted version of the document or reference list under seal will be retained by the Court as part of the record. The Court will, however, still require the party to file a redacted copy for the official record.

57.7 Counsel and Parties Responsible for Redactions. The responsibility for redacting the personal identifiers rests solely with the party filing the document. The Clerk will not review each pleading for compliance with this rule.

RULE 58 Petty Offenses and Other Misdemeanors.

58.1 Petty Offense or Misdemeanor Citations. *[Effective October 1, 2012]*

a. Collateral Forfeitures. Except as otherwise set forth below, individuals cited for a petty or misdemeanor offense must appear in Court at the place, date, and time for which they are given notice.

1. **Payment of a Collateral Forfeiture in Lieu of Appearance.** An individual cited for a petty or misdemeanor offense may be permitted to pay a collateral forfeiture amount or a reduced collateral forfeiture amount (as described below) to the Central Violations Bureau ("CVB") in lieu of appearing in Court. For an individual to be permitted to pay a collateral forfeiture amount to avoid appearing in Court, the offense for which the individual is cited must appear on the Court's Collateral Forfeiture Schedule. The Collateral Forfeiture Schedule may also set forth certain offenses for which payment of a collateral forfeiture in lieu of appearing in Court is not authorized and for which a defendant's appearance in Court is mandatory.
2. **Periodic Updates of the Collateral Forfeiture Schedule.** The Court shall periodically update its Collateral Forfeiture Schedule, which will be approved and adopted by order of the Chief District Judge.
3. **Payment of a Reduced Collateral Forfeiture Amount.** With the agreement and approval of the United States Attorney's Office ("USAO"), or its designated prosecutor, either before or after arraignment, a person charged with a petty offense or misdemeanor crime may pay to the CVB a collateral forfeiture amount that is less than the collateral forfeiture amount set forth for the petty offense of the Court's Collateral Forfeiture Schedule.
4. **Effect of Payment of a Collateral Forfeiture Amount or Reduced Collateral Forfeiture Amount.** Payment of a collateral forfeiture amount or reduced collateral forfeiture amount is a resolution of the case without an admission of liability or an adjudication of guilt by the Court. Payment of the collateral forfeiture amount or reduced collateral forfeiture amount is not a fine. Traffic violations for which a defendant pays a collateral forfeiture amount or reduced collateral forfeiture amount shall not be reported to a State or tribal government.
5. **Effect of Non-Payment of a Collateral Forfeiture or Reduced Collateral Forfeiture.** If a collateral forfeiture payment or reduced collateral forfeiture payment is not paid in full within the agreed period, the citation may be reissued. If a citation is reissued, the Court may give credit for any payment already rendered.

b. Other Pre-Trial Dispositions of Petty Offenses or Misdemeanor Citations. In lieu of payment of a collateral forfeiture amount or a reduced collateral forfeiture amount, an individual cited for a petty or misdemeanor offense may also negotiate with the USAO for a resolution of the citation in lieu of, or in addition to, making any collateral forfeiture payment. Such a pre-trial resolution may include serving a

term of community service. Pre-trial resolutions approved by the Court may be adjudications.

c. Resolution at Trial. A person cited for a petty offense or misdemeanor crime has a right to persist in a plea of "not guilty" and assert applicable rights at trial. At trial, the maximum penalty is set by the statute or regulation without regard to the Court's Collateral Forfeiture Schedule. A conviction at trial is an adjudication of guilt. Convictions for traffic violations at trial may be reported to a State or tribal government. After trial, the CVB will close the case with the appropriate disposition code.

d. Failure to Appear. A bench warrant may be issued for a person cited for petty or misdemeanor offenses who fails to appear in Court as required, if the person's absence is not excused by the Court. Bench warrants remain open until ordered closed by the Court. In lieu of a bench warrant for failure to appear on any alleged violation, the Court may report the failure to appear to the State of New Mexico Motor Vehicle Department, or other applicable state department of motor vehicles, with an abstract to prevent car re-registration and/or driver's license renewal without first adjudicating the federal citation(s).

58.2 Appeal Procedures for Decisions of the Magistrate Judge on Misdemeanors and Petty Offenses.

a. Appellant's Brief. Appellant's brief must be filed and served within fourteen (14) days after the filing of the Notice of Appeal.

b. Appellee's Brief. Appellee's brief must be filed and served within fourteen (14) days of the filing and service of appellant's brief.

c. Reply Brief. Appellant may file and serve a reply brief within seven (7) days after the filing and service of appellee's brief.

d. Length of Briefs and Exhibits. The appellant's brief must not exceed twenty (20) double-spaced pages. The appellee's brief must not exceed fifteen (15) double-spaced pages. A reply brief must not exceed ten (10) double-spaced pages. Exhibits must not exceed twenty (20) pages.

e. Notice of Electronic Filing (NEF) Sent by CM/ECF is Service. When a pleading is electronically filed**,** a Notice of Electronic Filing (NEF) will be sent by the CM/ECF system to all Registered Participants. The NEF is valid service to Registered Participants. It is the responsibility of the filer to determine if all parties entitled to service are Registered Participants.

f. Party not a Registered Participant. If a party entitled to service is not a Registered Participant, the filer must serve the pleading by an alternate method.

g. Certificate of Service. Every pleading must have a certificate of service stating how the party was served. Certificates of service and the Notices of Electronic Filing are explained in the CM/ECF Administrative Procedures Manual.

h. Appeals. All appeals from Magistrate Judge decisions will be decided by the District Court without a hearing, unless otherwise ordered by the District Court.

LOCAL FORM 1

IN THE UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF NEW MEXICO

UNITED STATES OF AMERICA,

Plaintiff,

vs. CRIMINAL NO.

Defendant.

O R D E R

THIS MATTER comes on for consideration **sua sponte.** The defendant has been arraigned in the above-styled criminal action and has been given a date by which pre-trial motions shall be filed. In an effort to streamline the discovery process and minimize unnecessary efforts of the Court personnel and counsel, the Court deems that the following discovery will be authorized by the Court through the United States Magistrate Judge.

Wherefore, **IT IS HEREBY ORDERED** as follows:

1. DEFENDANT IS DEEMED TO REQUEST DISCOVERY UNLESS WAIVER IS FILED. The Defendant is on notice that unless he or she files with the Court no later than 7 days from the entry of this Order a waiver of request for discovery from the Government signed by the Defendant, the Court will deem the Defendant to have requested discovery and be subject to the reciprocal discovery obligations of Rule 16 of the Federal Rules of Criminal Procedure. *See* Fed. R. Crim. P. 16(b)(1).

2. DISCLOSURE OF EVIDENCE BY THE GOVERNMENT. Unless the Defendant has filed the aforesaid waiver, and subject to paragraph 12 below, within 14 days of the entry of

this Order, the Government shall provide to the Defendant's attorney without motion the discovery to which the Defendant is entitled pursuant to Rules 16(a)(1)(A), (B), (C), (D), (E), and (F) of the Federal Rules of Criminal Procedure.

3. DISCLOSURE OF EVIDENCE BY THE DEFENDANT. If the Defendant has not filed the waiver of request for discovery within 7 days of the entry of this order and the Government has complied with its discovery obligations of Rule 16, the Defendant shall produce within 14 days of the Government's compliance with this disclosure order the discovery to which the Government is entitled pursuant to Rules 16(b)(1)(A) and (B) of the Federal Rules of Criminal Procedure.

4. EXPERT WITNESSES. The Court will set a date before trial by which each party shall disclose a written summary of testimony the party intends to use under Rules 702, 703 or 705 of the Federal Rules of Evidence during its case in chief at trial. This summary must describe the witness's opinions, the bases and the reasons therefor, and the witness's qualifications.

5. CONTINUING DUTY TO DISCLOSE. It is understood that discoverable material may come into the possession of a party after the deadlines set forth in this order. Accordingly, if prior to or during trial a party discovers additional evidence or material which is subject to discovery or inspection under Rule 16, such party shall promptly notify the other party of the existence of the additional evidence or material.

6. INFORMATION NOT SUBJECT TO DISCLOSURE. Unless mandated by the remaining paragraphs of this Order, evidence not otherwise subject to disclosure under Rule 16 is not required to be produced pursuant to this standing discovery Order.

7. DISCLOSURE OF *BRADY*, *GIGLIO* AND JENCKS ACT MATERIALS. The Government shall make available to the Defendant by the time required by the applicable law all

material for which disclosure is mandated by *Brady v. Maryland*, 373 U.S. 83 (1963), by *Giglio v. United States*, 405 U.S. 150 (1972), and by the Jencks Act (18 U.S.C. § 3500) and Rules 12(h) and 26.2. Pursuant to the Due Process Protections Act, the Court confirms the Government's obligation to produce all exculpatory evidence to the defendant pursuant to *Brady v. Maryland* and its progeny, and orders it to do so. Failing to do so in a timely manner may result in consequences, including but not limited to, exclusion of evidence, adverse jury instructions, dismissal of charges, contempt proceedings, or sanctions by the Court.

8. DISCLOSURE OF FEDERAL RULE OF EVIDENCE 404(b) MATERIAL. All Rule 404(b) information shall be disclosed by the Government to the Defendant at least 7 days prior to trial unless otherwise ordered by the Court.

9. FURTHER DISCOVERY MOTIONS SHALL NOT BE FILED BY EITHER PARTY EXCEPT AS AUTHORIZED BELOW. The Defendant may file with the Court a particularized "Notice of *Brady* Requests" made to the Government in order to satisfy any specificity requirements under *United States v. Agurs*, 427 U.S. 97 (1976). If a party contends that the opposing party has not provided the material required to be produced by this Order, that party may petition this Court for its disclosure only after a specific request for production has been denied by the opposing party. However, the Court will deny any such petition unless the party seeking production complies with the following requirements:

A. Identifies with specificity the evidence required to be disclosed and the paragraph of this Order authorizing its production; and

B. Identifies the attorney for the Government or attorney for the Defendant to whom a specific request for disclosure was made, the date such disclosure was denied and the proffered reason for denial.

Such petitions shall be filed by the motions deadline as set by the Magistrate Judge at arraignment; however, a petition shall not be refused as untimely where the opposing party has previously declined production on the grounds of present unavailability of the evidence or where the applicable law does not require production until after the motions deadline.

10. PRESERVATION OF TAPES, NOTES AND OTHER MEMORANDA. The Government shall not purposefully destroy any tapes, notes, electronic data, surveillance logs, reports, memoranda or communications generated in connection with this case until it is resolved.

11. NON-DISCOVERY PRE-TRIAL MOTIONS. All non-discovery pre-trial motions, including a motion for a bill of particulars pursuant to Rule 7(f) of the Federal Rules of Criminal Procedure, shall be filed by the motions deadline as set by the Magistrate Judge at arraignment.

12. RULE 16.1 PRETRIAL DISCOVERY CONFERENCE. No later than 14 days after arraignment, the attorney for the Government and the Defendant's attorney will confer regarding pretrial discovery. If an extension of any of the deadlines set forth herein is necessary as to any item or category of discovery, the attorney for the party requiring the extension shall promptly notify the Court. If the parties conclude, based on the complexity of the case or otherwise, that a different scheduling order should be substituted for this Order, the parties shall promptly submit a joint scheduling order for the Court's consideration.

DATED:

_____

UNITED STATES MAGISTRATE JUDGE